

25STCP01837 25STCP01837

County: los-angeles

Division: Civil Law and Motion

Department: 732

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Case Number: 25STCP01837 Hearing Date: August 12, 2026 Dept: 732

L.A. Arena Company, LLC v. Amber Saji

Wednesday, August

12, 2026

CASE NUMBER: 25STCP01837

UNOPPOSED

Petitioner L.A. Arena Company,
LLC's First Amended Petition to Confirm Contractual Arbitration Award.

Facts: Petitioner

L.A. Arena Company ("Petitioner") filed a Petition to Confirm Contractual Arbitration Award (the "Petition") against respondent Amber Saji ("Respondent"). According to the initial petition, which was filed on May 15, 2025, Petitioner and Respondent entered into a written agreement to arbitrate on or about April 17, 2024. (Petition at ¶ 4(a).) A dispute arose pursuant to a "CRYPTO.COM Arena Suite License Agreement" (Id. ¶ 4(c).) On April 3, 2025, an arbitration occurred via Zoom. (Id. ¶¶ 7(a)-(7)(b).) On April 28, 2025, an arbitration award was issued requiring Respondent to pay Petitioner the sum of \$381,549.32. (Id. ¶ 8(b).)

Procedural History: On May 15, 2025, Petitioner filed the

Petition in this action against Respondent.

On May 21, 2025, the Court issued a Notice of Hearing on Petition, which set the hearing on the Petition for July 23, 2025.

On July 11, 2025, Petitioner filed and served a memorandum of points and authorities in support of the Petition, a declaration of counsel in support of the Petition, and a proposed order. (See Dkt.)

On July 23, 2025, the Honorable Lynne M. Hobbs sitting in Department 61 granted the Petition. (07/23/25 Minute Order at pp. 1-2.) Respondent did not file an opposition and failed to appear at the hearing. (Id. at p. 1.)

On July 24, 2025, Petitioner filed and served notice of entry of judgment or order.

On August 1, 2025, judgment was entered in favor of Petitioner and against Respondent in the sum of \$403,230.42. (See 08/01/25 Judgment, p. 2:5-6.)

On August 19, 2025, Respondent, in pro per, filed and served a motion to set aside default and default judgment under Code Civ. Proc. § 473.5.

On September 23, 2025, Petitioner filed and served notice of entry of judgment. Also, on such date, this action was reassigned to the Honorable Richard S. Kemalyan in Department 61 at Stanley Mosk Courthouse effective September 29, 2025.

On November 5, 2025, Petitioner filed an opposition to the motion to set aside default and default judgment.

On November 19, 2025, after hearing, the court granted Respondent's motion to vacate judgment and vacated "the judgment entered on August 1, 2025, as well as the order of July 23, 2025, confirming Petitioner's petition to confirm the arbitration award" (11/19/25 Minute Order at p. 5.)

On December 5, 2025, Petitioner filed the operative First Amended Petition to Confirm Contractual Arbitration Award ("FAP").

On December 11, 2025, Respondent was served with, inter alia, the FAP via mail. (See 12/23/25 Proof of Service By Mail.)

On December 12, 2025, Respondent was served with, inter alia, the FAP via personal service. (See 12/23/25 Proof of Service of Summons at pp. 1-2.)

On February 13, 2026, Petitioner filed an Amended Proof of Service of Summons indicating that, inter alia, Respondent was served with, among other documents, the FAP and the Final Award on December 12, 2025, via personal service. (See 02/13/26 Amended Proof of Service of Summons at pp. 1-2.)

Also, on February 13, 2026, Petitioner filed an Amended Proof of Service as to service of, among other documents, the FAP on Respondent via mail on February 12, 2026. (See 02/13/26 Amended Proof of Service.)

On April 1, 2026, Respondent was served with, inter alia, the FAP and the Final Award by substituted service. (See 04/15/26 Amended Proof of Service of Summons at pp. 1-2.)

Also, on April 1, 2026, Respondent was served with, inter alia, the Final Award by substituted service. (See 04/07/26 Proof of Service of Summons at pp. 1-2.)

On April 30, 2026, Petitioner filed and served the instant Notice of Hearing as to the FAP. Attached thereto is a memorandum of points and authorities in support thereof.

As of Friday, August 7, 2026, as of 9:20 A.M., no written opposition has been filed to the petition to confirm contractual arbitration award in connection with the FAP. The lack of written opposition may be deemed a consent to the granting of the motion. (Cal.

Rules of Court, Rule 8.54(c).)

Analysis:

I.

PETITION TO

CONFIRM CONTRACTUAL ARBITRATION AWARD

“Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award.” (Code Civ. Proc. § 1285.) “The petition shall name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award.” (Ibid.) The petition must be filed and served no less than ten days and no more than four years after the award is served on the party seeking confirmation. (Code Civ. Proc., §§ 1288, 1288.4.) If a petition is not opposed after being duly filed and served on respondent, its allegations are deemed admitted. (Code Civ. Proc. § 1290.)

Until it is either confirmed or vacated, an arbitration award “has the same force and effect as a contract in writing between the parties to the arbitration.” (Code Civ. Proc. § 1287.6.) On the other hand, once confirmed, “judgment shall be entered in conformity therewith” with “the same force and effect as, and is subject to all the provisions of law relating to, a judgment in a civil action of the same jurisdictional classification.” (Code Civ. Proc. § 1287.4.) Code Civ. Proc § 1283.6 provides that “[t]he neutral arbitrator shall serve a signed copy of the award on each party to the arbitration personally or by registered or certified mail or as provided in the agreement.” (Code Civ. Proc., § 1283.6.) Code of Civil Procedure section 1285.4 requires the petition to set forth (1) the substance of the arbitration agreement if a complete copy is not attached, (2) the names of the arbitrators, and (3) the arbitration award and the arbitrator’s opinion if a complete copy is not attached. Code of Civil Procedure section 1290.4, subdivision (a), provides that “[a] copy of the petition” to confirm arbitration award, “a written notice of the time and place for the hearing,” “and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement.” In the event that the arbitration agreement does not provide a method of service, the petition must be served pursuant to one of the methods set forth in Code of Civil Procedure section 1290.4, subdivision (b) or (c).

Petitioner obtained a Final Award in its favor and against \$381,549.32. (FAP, Attachment 8(C).) Petitioner moves to confirm the Final Award.

As an initial matter, the Court notes that Respondent did not file an opposition. While the moving party generally bears the initial burden of proof on its motion, and lack of opposition will not automatically entitle the moving party to prevail on its motion, a party's failure to file an opposition can be considered a concession that the motion is meritorious. (See *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Here, Petitioner served a copy of the FAP and a written notice of the time and place for the hearing, pursuant to Code of Civil Procedure section 1290.4, subdivision (b)(1). In addition, Petitioner set forth the substance of the arbitration agreement and attached a copy of the arbitration agreement (FAP, Attachment 4(B); Code Civ. Proc., § 1285.4, subd. (a)), the name of the arbitrator, Hon. Kirk H. Nakamura (Ret.) (FAP ¶ 6, Attachment 8(C); Code Civ. Proc., § 1285.4, subd. (b)), and the Final Award (FAP, Attachment 8(C); Code Civ. Proc., § 1285.4, subd. (c)). According to the declaration of Richard D. Buckley, Jr., the Final Award was served on Respondent via e-mail. (Declaration of Richard D. Buckley, Jr. Filed April 30, 2026 ¶ 4, Ex. A.) Moreover, pursuant to the various proofs of service Petitioner filed, Respondent has been served with the Final Award by personal service and by substituted service.

The arbitrator did not "serve a signed copy of the award on each to the arbitration personally or by registered or certified mail" as the parties were served by e-mail. (Code Civ. Proc. § 1283.6 [italics added].) The court has reviewed the arbitration agreement, and such agreement is silent on the method of service of the Final Award. (FAP at Attachment 4(b).) When an arbitration agreement is silent on the method of service, "[s]ervice within this State shall be made in the manner provided by law for the service of summons in an action." (Code Civ. Proc., § 1290.4, subd. (b)(1).) Petitioner served the FAP and the notice of hearing by, among other means, personal service and by mail. Thus, service is proper pursuant to Code Civ. Proc. § 1290.4(b)(1) as Petitioner has used service methods articulated in Code Civ. Proc. §§ 415.10, 415.20, and 415.30.

Here, Petitioner was served

with the Final Award on April 28, 2025. (FAP, ¶ 9(a).) The Petition was filed with the court on May 15, 2025, and the operative FAP was filed with the court on December 5, 2025. Petitioner has complied with Code Civ. Proc. §§ 1288 and 1288.4.

Accordingly, the operative First Amended Petition to Confirm Contractual Arbitration Award is GRANTED.

Superior Court of California

County of Los Angeles

Department 732

L.A. ARENA COMPANY, LLC,

Petitioner,

v.

AMBER SAJI,

Respondent.

Case No.:
25STCP01837

Hearing Date: August 12, 2026

[TENTATIVE] RULING RE:

PETITIONER'S FIRST AMENDED PETITION TO CONFIRM CONTRACTUAL
ARBITRATION AWARD

Petitioner

L.A. Arena Company, LLC's First Amended Petition to Confirm Contractual
Arbitration Award is GRANTED.

Counsel for Petitioner to provide notice.

Dated: August 12, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court